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# ‘Right to housing’ constitutional amendment clears a California Assembly committee vote

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Author: Andrew Sheeler, The Sacramento Bee | Section: capitol_alert | 1012 Words
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Good morning and welcome to the A.M. Alert!

COMMITTEE HEARS ‘RIGHT TO HOUSING’ CONSTITUTIONAL AMENDMENT

On Wednesday, the Assembly Committee on Housing and Community Development heard the story of Peggy Pleasant, a formerly homeless Los Angeles woman who spent time living in the city’s infamous Skid Row before finally ending up in affordable housing.

“When you’re homeless, you lose housing, you lose family members, you lose your hope. And when you lose your hope, that makes you an inadequate person,” Pleasant said.

Pleasant was testifying in support of ACA 10, a proposed constitutional amendment to guarantee all Californians the right to housing.

As the author, Assemblyman Matt Haney, D-San Francisco, said during testimony Wednesday, more than 100 human rights groups, including ACLU California Action and ACCE Action, a statewide pro-housing organization, have signed on in support of the proposed amendment.

“Recognizing a right to housing is essential to meaningfully address the housing crisis. Such a right is a guarantee that Californians’ housing security is protected from the whims and uncertainties of politics, the charitable sector, or the private market,” according to a statement from the ACLU.

California’s constitution currently enshrines several rights, including the right to own property and the right to get an abortion (as of 2022).

ACA 10 would amend the constitution to “declare that the state recognizes the fundamental human right to adequate housing for everyone in California. The measure would make it the shared obligation of state and local jurisdictions to respect, protect, and fulfill this right, by all appropriate means,” according to the legislative counsel’s digest.

The amendment passed the committee 6-2 (with Republicans voting no), but not before Assemblyman Jesse Gabriel, D-Woodland Hills, expressed concern about the “major, major heartburn” that the amendment was giving him.

“Because of the language of this (amendment), I see a basis for anyone in California to challenge any law...” he said.

Gabriel said judges could use the amendment to justify cutting Prop 98 education funding, for example, in order to make more money available for housing. The amendment could also be used to gut the California Environmental Quality Act or kneecap the trade unions for the same reason, he said.

Haney called that argument a “straw man” — a rhetorical term for an intentionally misrepresented statement — similar to the slippery slope scenario invoked against Proposition 1 — 2022’s constitutional amendment to enshrine the right to abortion.

Assemblywoman Buffy Wicks, D-Oakland, who chairs the committee, said she supports the idea behind the

amendment but encouraged Haney to work with lawmakers who had concerns.

In order to go before California voters, ACA 10 must pass both houses of the California Legislature with a two-thirds vote.

NEWSOM, OTHERS ISSUE STATEMENTS ON ANTI-LGBTQ VIOLENCE IN GLENDALE

Anti-LGTBQ violence is on the rise nationwide, and California is no exception. On Tuesday night, as the Glendale Unified School District board met for a routine vote to declare June as LGBTQ Pride Month, a brawl erupted between protesters and counter-protesters who had gathered outside.

According to the Los Angeles Times, three people were arrested, and there were reports that the far-right extremist group the Proud Boys was present.

Several California elected officials weighed in on the incident, including Gov. Gavin Newsom.

“What should have been a routine vote — simply recognizing Pride Month for the fourth year in a row — turned to violence. The words of the resolution did not change from years past, but what has changed is a wave of division and demonization sweeping our nation,” Newsom said in a statement Wednesday.

Sen. Scott Wiener, D-San Francisco, whose advocacy has made him a lightning rod for anti-LGBTQ hate, said in a statement that those who incited the violence should be held accountable.

“Driving the mob last night in Glendale are years of slander against LGBTQ people that far-right extremists use to stoke hate — particularly the slander that LGBTQ people are ‘groomers’ and ‘pedophiles.’ Here in California, these lies recently drove the Orange County ban on Pride flags on county property, the demonization of a charitable drag queen we honored in the Legislature, and the withdrawal of two California trans teen athletes from the state track championships,” Wiener said.

Rep. Adam Schiff, whose California district includes Glendale, tweeted Tuesday night that the acts against LGBTQ people “are horrific.”

“We will not go back. We will not apologize for celebrating the strength and the diversity of our LGBTQ community,” he wrote.

QUOTE OF THE DAY

“We need quality journalism now more than ever. This is incredibly disheartening. I strongly urge the management of the @latimes to meet and bargain in good faith with @latguild and avoid any potential cuts to their newsroom.”

- Assemblywoman Buffy Wicks, D-Oakland, discussing the layoffs at the Los Angeles Times, via Twitter.

Best of The Bee:

Gov. Gavin Newsom isn’t buying the narrative from Florida officials that 36 migrants from Latin America were flown to Sacramento voluntarily. Instead, California’s Democratic governor is digging in on his pursuit of criminal charges against those responsible, via Maggie Angst.California’s oldest and longest-serving state employee has died, via Maya Miller.With her confirmation as U.S. Labor secretary stalled in the Senate by angry Republicans and undecided Democrats, Julie Su was grilled aggressively Wednesday by GOP lawmakers about her California record and support for worker rights, via David Lightman.Legendary country music artist Dolly Parton’s international library program is expanding in California, Gov. Gavin Newsom’s office announced Tuesday, via Angela Rodriguez.California’s economy should perform better than the nation’s in the months and years ahead, a new UCLA Anderson state forecast said Wednesday, via David Lightman.California financial regulators reached an agreement with a Los Angeles-based, community-finance company where its representatives agreed to pay a

$50,000 penalty and to reimburse consumers for donations they made to the company, via Randy Diamond.The federal investigation into former Republican President Donald Trump’s alleged mishandling of classified documents has pulled in a familiar face to the Sacramento area: California Republican operative and former Trump spokesman Taylor Budowich, via Andrew Sheeler.Gov. Ron DeSantis, a Republican presidential candidate who has made immigration a major theme in his campaign, is doubling down on the idea that Republicans need to come together and take border security into their own hands, via Ana Ceballos.

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